Executive Order

WHEREAS, Under the provisions of Section 17 of the Act approved June 5, 1920, entitled "An Act to provide for the promotion and maintenance of the American merchant marine, etc.," the Shipping Board "is authorized and directed to take over on January 1, 1921, the possession and control of, and to maintain and develop, all docks, piers, warehouses, wharves and terminal equipment and facilities, including all leasehold easements, rights of way, riparian rights and other rights, estates and interests therein or appurtenant thereto, acquired by the President by or under the Act entitled 'An Act making appropriations to supply urgent deficiencies in appropriations for the fiscal year ending June 30, 1918, etc.'"; and

WHEREAS, By a further provision of said Section 17, "the President may at any time he deems it necessary, by order setting out the need therefor and fixing the period of such need, permit or transfer the possession and control of any part of the property taken over by or transferred to the Shipping Board under this section to the War Department or the Navy Department for their needs"; and

superseded by No. 3573

for No. 3649

WHEREAS, The piers known as the Hoboken piers, formerly the property of the North German Lloyd and Hamburg American Steamship Companies and of the Hoboken Shore Railroad, were acquired by the President under the Act referred to in paragraph 1 of Section 17 of the Act of June 5, 1920, hereinbefore recited, and are therefore subject to the provisions of said Section 17; and

WHEREAS, The War Department has heretofore leased Pier No. 1, with bulkhead and yard space opposite, of said property to the Panama Railroad Steamship Line for a period of five years, which said Panama Railroad Steamship Line is the property of the Government of the United States, performing an indispensable service in connection with the maintenance and operation of the Panama Canal, and incidentally furthering the commercial service between the United States and certain Caribbean, Central and South American ports, and is using said pier intensively and efficiently; and

WHEREAS, Piers 1, 4, 5 and 6, being parts of said property, are necessary to be retained in the possession and control of the War Department for use in connection with the overseas transport service now carrying men and supplies to and from Antwerp for the American Army of Occupation at Coblenz; now

THEREFORE, I do hereby determine that it is necessary that the War Department retain of such property, Piers 1, 4, 5 and 6, together with the north half of the slip lying between Piers 1 and 2, south half of slip lying between Piers 3 and 4, and all of slips lying between Piers 4, 5 and 6; also bulkhead opposite Pier 1, bulkhead opposite slip between Piers 1 and 2, south half of bulkhead opposite slip between Piers 2 and 3, and bulkheads opposite Piers 3, 4, 5 and 6, and the slips lying between the last mentioned piers; also the second floor of bulkhead opposite Pier 1, bulkhead opposite slip between Piers 1 and 2, south half of bulkhead between Piers 2 and 3 and bulkheads opposite Piers 3, 4 and 5, and the slips lying between the last named piers; also the offices on third floor of bulkhead piers 1 to 3, inclusive, and the yard space opposite Piers 1 to 6, inclusive, together with all buildings located thereon; and do order and direct that the said War Department do retain all of such property so described, and fix the period of retention as to Pier 1, with bulkhead and yard space opposite, as the period of the existing lease of five years made between the War Department and the Panama Railroad Steamship Line, and as the period of retention of the other property herein directed and ordered to be retained a period of two years, unless in the opinion of the President the need of the War Department therefor, or for any part thereof, shall in the meantime cease, in which case, by an order subsequent hereto, the President declaring the cessation of such need shall cause possession and control of such property or part thereof to revert to the Shipping Board.

Executive Order No. 3332, dated October 2, 1920, directing the retention by the War Department of certain portions of the Hoboken piers, is hereby canceled.

WOODROW WILSON

THE WHITE HOUSE,
5 November, 1920.

[No. 3350.]